

CV-24-000143 DHANOTA, RITA vs NUCOR BUILDINGS GROUP WEST LLC – Plaintiff's Motion for Final Approval of Class Action and Paga Settlement Agreement – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: This is a wage and hour case. It appears that proper notice to the settlement class has been given in compliance with the law and as required by the Court's Order Granting Preliminary Approval. The Settlement Administrator mailed notice to all 297 class members, conducted address updates through NCOA, performed skip tracing on returned notices, remailed notices when updated addresses were obtained, and reports that no class member requested exclusion, objected to the settlement, or challenged workweek or PAGA pay period calculations. The Court therefore finds that notice was the best practicable under the circumstances and satisfied due process requirements. Having considered the unopposed motion and the supporting declarations and evidence, the Court finds that the Settlement was entered into in good faith, is fair, reasonable, and adequate, and satisfies the standards for final approval under California law. (Civ. Code § 1781; Code Civ. Proc. § 382; Cal. Rules of Court, rule 3.769.) Good cause appearing to the satisfaction of the Court, the proposed Settlement and the associated fees and costs are approved as follows: - Fees and costs of Settlement Administrator (Apex Class Action, LLC): \$8,500.00; - Payment to Class Representative Rita Dhanota: \$10,000.00; - PAGA allocation: \$40,000.00, consisting of \$30,000.00 (75%) payable to the LWDA and \$10,000.00 (25%) payable to aggrieved employees; - Class Counsel's attorneys' fees: \$171,666.67; - Class Counsel's litigation costs: \$19,487.51. In accordance with Code of Civil Procedure section 384(b), the Court SETS a compliance hearing for April 23, 2027, at 8:30 a.m. in Department 21 to confirm full administration of the Settlement. The Settlement Administrator shall file a compliance report no later than five court days before the hearing, including the total amount actually distributed to participating class members and aggrieved employees and identifying any uncashed settlement checks. The Court orders that Notice of the Court's Order Granting Final Approval and Judgment be posted on the Settlement Administrator's website for a period of at least 90 days. (Cal. Rules of Court, rule 3.771(b).) The current proposed order contains findings and provisions that were not expressly requested in the notice of motion and motion. In addition, it omits provisions regarding the compliance hearing and amended judgment contemplated by the Settlement and this ruling. Accordingly, Class Counsel is ordered to submit a revised proposed order within five court days that conforms to this ruling.

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